



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FACSIMILE

{{insurance2.insurer.name}}

Attn: {{insurance2.adjuster.name}}

{{insurance2.adjuster.address1line1}} {{insurance2.adjuster.address1line2}}

{{insurance2.adjuster.address1city}}, {{insurance2.adjuster.address1state}}

{{insurance2.adjuster.address1zip}}

F: {{insurance2.adjuster.fax1}}

Re:	Your Insured:	{{insurance2.insured.name}}
	Our Client(s):	{{fullname}}, _____, and _____
	Policy No.:	{{insurance2.policynumber}}
	Claim No.:	{{insurance2.claimnumber}}
	Date of Loss:	{{intake.incidentDate}} <u>longDate</u>

To Whom It May Concern:

Please be advised that this office has been retained to represent {{fullname}}, _____, and _____ with regards to the personal injuries and damages sustained as a result of a motor vehicle collision involving your insured's vehicle.

1. A **certified copy of all insurance policies**, including any umbrella policy(ies), of your insured so that we may determine whether this claim can be resolved within your policy limits. Please be aware that an insurer's failure to disclose policy limits during the prelitigation phase may serve as a basis for bad faith actions. See *Powell v. Prudential P&C Ins. Co.*, 584 So. 2d 12 (Fla. 1991), and *Boincourt v. Amex Assur. Co.*, 78 Cal. App. 4th 1390 (Cal. 2000) which are both persuasive authorities on the matter.
2. **Initial property damage estimate** and **photos** of your insured's vehicle.
3. Kindly forward copies of any recorded oral and or written statements taken from our client with regards to the facts of this loss.

Please also notify this office as to your intentions with regards to {{fullname}}'s property damage claim. If no claim has been put forth with your office, please accept this letter as formal notification of the same. Furthermore, pursuant to NAC 686A.680, "where liability and damages are reasonably clear an insurer may not recommend that a third-party claimant make a claim under his or her own policies solely to avoid paying claims



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under the insurer's insurance contract or policy." **Pursuant to Dugan v. Gotsopoulos, 117 Nev. 285, 22 P.3d 203 (2001), if you do not resolve our client's property damage claim in a timely manner, we will assert a claim for loss of use for each day that our client is without a vehicle. The daily amount will be the value of a rental vehicle that is comparable to our client's vehicle. As such, it is advisable that you resolve our client's property damage claim promptly.**

Finally, please instruct your insured to preserve all evidence in your insured's possession, custody, or control related to this incident. This includes any photographs, and/or video/audio of the incident, parties, and/or the involved vehicles, text messages, statements of the parties, etc. Failure to preserve that evidence may result in sanctions against your insured. See, *Stubli v. Big D International Trucks, Inc.*, 810 P.2d 785, 107 Nev. 309 (1991).

Please confirm in writing your address and any other information to correspond with the adjuster. **Please note that, pursuant to Nevada Administrative Code 686A.665, you are to acknowledge the receipt of a claim notice within 20 working days after receipt of the claim.** Please note that our preferred method of communication is email. You may address all correspondence to records@goldmedalinjurylaw.com. Should you have any further questions, comments or concerns regarding the contents of this letter, or should you require further information, please do not hesitate to contact our office.

Very Truly Yours,

Randolph Goldberg, ESQ.

{{FIRM_NAME}}

RG/____